

## Denials

DPS is authorized to deny the issuance of a driver license to a person who is ineligible to receive a license in this state. An applicant may be denied a driver license for:

1. Suspension/revocation/cancellation/disqualification status in Texas, another state, or Canadian Province
2. Physical or mental incapacity preventing the safe operation of a motor vehicle
3. Acquiring motor vehicle fuel without payment
4. Certain criminal mischief (i.e. graffiti)
5. Purchasing or furnishing alcohol to a minor
6. Delinquent child support
7. Failure to pay reinstatement fees
8. Failure to appear or failure to pay for certain violations
9. Drug offense

**Special Note:**  
DPS may deny the renewal of a driver license of a Texas licensee who fails to appear in court for traffic violations or certain other offenses within the jurisdiction of any court listed in Chapter 4 of the Code of Criminal Procedures.

## Driving While License Invalid (DWLI)

Individuals who drive a motor vehicle while their driver license is suspended, revoked, denied, or cancelled are subject to suspensions and criminal penalties. The penalties for driving a motor vehicle while your license is invalid are listed below.

**Table 8: Penalties for Driving While License Invalid (DWLI)**

| Offense                                                                                                                                                                                                                                                  | Penalty                                                                                                           |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|
| Driving a motor vehicle while driver license or privilege is suspended, cancelled, denied, or revoked.                                                                                                                                                   | Class C misdemeanor, punishable by a fine of up to \$500.                                                         |
| The person has a previous conviction for the same offense, was operating a vehicle without insurance at the time of the offense, or the person's license had been suspended because of an offense involving operating a motor vehicle while intoxicated. | Class B misdemeanor, punishable by a fine of up to \$2,000 and/or confinement in jail for not more than 180 days. |
| The person was operating a vehicle without insurance at the time of the offense and caused a crash which resulted in serious bodily injury or death of another. The suspension will automatically be extended.                                           | Class A misdemeanor, punishable by a fine of up to \$4,000 and/or confinement in jail for not more than 365 days. |

## Penalties for Non-Driving Alcohol-Related Offenses by Minors

The Zero Tolerance law provides penalties for minors who commit non-driving alcohol related offenses. A minor may not purchase, attempt to purchase, falsely state he/she is 21 years of age or older, or present a document indicating he/she is 21 years of age or older to a person engaged in selling or serving alcoholic beverages. A minor may not consume, or possess an alcoholic beverage. The penalties for non-driving alcohol-related offenses for minors are listed below.

**Table 9: Penalties for Non-Driving Alcohol-Related Offenses - Minors**

| Offense                                                    | Penalty                                                                                                                                                                                                                                                                                                                                 |
|------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1st offense                                                | Class C misdemeanor punishable by a fine of up to \$500, 8 to 12 hours of community service, and mandatory alcohol awareness course attendance. The driver license will be suspended (or privilege will be denied if not licensed) for 30 days.                                                                                         |
| 2nd offense                                                | Class C misdemeanor punishable by a fine up to \$500, 20 to 40 hours of community service, and the minor may be required to attend an alcohol awareness course. The driver license will be suspended (or privilege will be denied if not licensed) for 60 days.                                                                         |
| 3rd offense<br>(At least 17 years of age but less than 21) | Class B misdemeanor punishable by a fine of \$250 to \$2,000; minor may also be required to attend an alcohol awareness course. The driver license will be suspended (or privilege will be denied if not licensed) for 180 days. Minors are not eligible for deferred disposition on the third conviction or any subsequent conviction. |
| 3rd offense<br>(Under 17 years of age)                     | Class C misdemeanor punishable by a fine up to \$500, 20 to 40 hours of community service, and the minor may be required to attend an alcohol awareness course. The driver license will be suspended (or privilege will be denied if not licensed) for 60 days, or the case can be transferred to Juvenile Court as delinquent conduct. |

A minor who is convicted of driving while his/her license is suspended because of a non-driving alcohol related offense is subject to the penalties of Driving While License Invalid (DWLI).